

MASTER SUPPLY AGREEMENT

Contract reference THP/2023/ELEC-11

Electrical, lighting and cable products

Execution version

Issued 5 September 2023

Document control: THP-LEGAL-2023-11 rev 6. Printed 5 September 2023.

Custodian: contracts team, extension 2214. Retention: seven years from expiry.

This document is confidential and is issued to named recipients only.

CONTENTS

1 Definitions and interpretation	3
2 The parties	4
3 Commencement and term	4
4 Structure and order of precedence	5
5 Scope of supply	6
6 Ordering	7
7 Delivery, carriage and packaging	8
8 Prices and the price matrix	9
9 Payment	10
10 Invoicing and disputed invoices	11
11 Title and risk	12
12 Quality, warranty and defective goods	13
13 Returns and surplus	14
14 Compliance with laws	15
15 Health, safety and site rules	16
16 Insurance	17
17 Confidentiality	18
18 Data protection	19
19 Intellectual property	20
20 Limitation of liability	21
21 Force majeure	22
22 Termination	23
23 Consequences of termination	24
24 Assignment and subcontracting	25
25 Notices	26
26 Entire agreement and variation	27
27 Third party rights, waiver and severance	28
28 Governing law and jurisdiction	29
Schedule 1 Product categories	30
Schedule 2 Price matrix (issued separately)	34
Schedule 3 Delivery sites	36
Annex A Notices	39
Annex B Escalation contacts	40

1 DEFINITIONS AND INTERPRETATION

1.1 In this Agreement the following definitions apply.

"Agreement" means these Conditions together with the Schedules and Annexes.

"Business Day" means a day other than a Saturday, Sunday or public holiday in England.

"Conditions" means clauses 1 to 28 of this Agreement.

"the Customer" means the party identified as the Customer on the signature page and in clause 2.1.

"Order" means an order for goods placed by the Customer under clause 6.

"Price Matrix" means Schedule 2 as issued from time to time under clause 8.2.

"Schedule" means a schedule to this Agreement.

"Site" means a delivery point listed in Schedule 3.

"the Supplier" means the party identified as the Supplier on the signature page and in clause 2.2.

"Working Hours" means the hours stated for a Site in Schedule 3.

1.2 Clause and Schedule headings do not affect interpretation.

1.3 A reference to a statute includes any amendment or re-enactment of it.

1.4 A reference to writing includes electronic mail except where clause 25.3 applies.

1.5 Words in the singular include the plural and vice versa.

2 THE PARTIES; 3 COMMENCEMENT AND TERM

2.1 This Agreement is made between The Housing Partnership (Trentmoor) Limited, a company registered in England and Wales with number 08217640 whose registered office is at Trentmoor Civic Offices, Larkhall Road, Cawdale CW3 2RN ("the Customer"), and

2.2 Halbrook Electrical Distribution Ltd, a company registered in England and Wales with number 04118276 whose registered office is at Halbrook House, Marmion Way, Ellersby EL4 7QN ("the Supplier").

2.3 The Customer is a registered provider of social housing. The Supplier is a distributor of electrical, lighting and cable products.

3.1 This Agreement commences on 1 October 2023 ("the Commencement Date").

3.2 The initial term is three years from the Commencement Date, ending on 30 September 2026.

3.3 At the end of the initial term this Agreement continues until terminated by either party under clause 22.1.

3.4 This Agreement is executed on the date written on the signature page.

4 STRUCTURE OF THE AGREEMENT AND ORDER OF PRECEDENCE

4.1 This Agreement consists of these Conditions, Schedule 1 (Product Categories), Schedule 2 (Price Matrix), Schedule 3 (Delivery Sites), Annex A (Notices) and Annex B (Escalation).

4.2 If there is a conflict between them, the order of precedence is: these Conditions; Schedule 2; Schedule 1; Schedule 3; the Order.

4.3 Schedule 2 is issued separately as a spreadsheet under clause 8.2 and is valid only for the period stated in it. The remaining parts of this Agreement have no separate expiry and run for the term of this Agreement.

4.4 The expiry of Schedule 2 does not end this Agreement.

5 SCOPE OF SUPPLY

5.1 All Orders for electrical, lighting and cable products placed by the Customer with the Supplier are placed under this Agreement.

5.2 The product categories are described in Schedule 1. That description is indicative and does not limit clause 5.1.

5.3 The Agreement applies to deliveries in the United Kingdom.

5.4 The Customer and any body corporate under its control may place Orders. The Customer remains responsible for payment.

5.5 The Supplier is one of two approved distributors. No volume is guaranteed.

6 ORDERING

6.1 Orders are placed through the Customer's purchasing system or by electronic mail to the address in Annex A.

6.2 An Order is accepted when the Supplier acknowledges it in writing or despatches the goods, whichever happens first.

6.3 The Supplier shall acknowledge each Order within one Business Day.

6.4 The Supplier's own conditions of sale do not apply to an Order.

7 DELIVERY, CARRIAGE AND PACKAGING

7.1 Delivery is to the Site stated in the Order during the Working Hours stated in Schedule 3.

7.2 Time of delivery is not of the essence but the Supplier shall use reasonable endeavours to meet the requested date.

7.3 Delivery is free of carriage to the Sites listed in Schedule 3 on Orders with a net value of GBP 200 or more. On Orders below that value, and on deliveries to any other address, carriage is charged at cost.

7.4 Packaging is included in the price. The Supplier shall remove packaging waste from Sites on request at no charge.

8 PRICES AND THE PRICE MATRIX

8.1 Prices are exclusive of value added tax.

8.2 Prices are those set out in Schedule 2 (Price Matrix), which is issued separately as a spreadsheet and is valid for the period stated in it. A replacement Schedule 2 takes effect on the date stated in the replacement.

8.3 The Supplier shall issue a proposed replacement Schedule 2 at least sixty days before the current Schedule 2 expires.

8.4 If no Schedule 2 is in force, prices are the Supplier's published list price less 22 per cent until a replacement Schedule 2 is agreed.

8.5 Prices for items not listed in Schedule 2 are quoted on request.

9 PAYMENT

9.1 The Customer shall pay each correctly rendered invoice within 60 days from the end of the month in which the invoice is dated.

9.2 Payment is made by bank transfer to the account notified in writing.

9.3 The Supplier may charge interest on sums overdue at 2 per cent above base rate.

10 INVOICING AND DISPUTED INVOICES

10.1 Each invoice shall quote the Order number and the Site.

10.2 The Customer shall notify a disputed invoice within twenty Business Days of receipt and shall pay the undisputed part on the due date.

10.3 The parties shall use reasonable endeavours to resolve a disputed invoice within thirty days.

11 TITLE AND RISK

11.1 Risk in the goods passes to the Customer on delivery to the Site.

11.2 Title passes on payment in full for the goods concerned.

11.3 Until title passes the Customer shall store the goods so that they remain identifiable as the Supplier's property.

12 QUALITY, WARRANTY AND DEFECTIVE GOODS

12.1 The goods shall conform with their description, be of satisfactory quality and comply with the applicable British and European standards.

12.2 The Supplier shall replace or credit goods shown to be defective within twelve months of delivery, or within the manufacturer's warranty period if longer.

12.3 Claims for shortage or damage in transit shall be notified within three Business Days.

13 RETURNS AND SURPLUS

13.1 Unused stock items in original packaging may be returned within ninety days for credit subject to a handling charge of 10 per cent.

13.2 Special order items are not returnable.

13.3 The Supplier shall collect agreed returns from the Site within ten Business Days.

14 COMPLIANCE WITH LAWS

14.1 Each party shall comply with all applicable laws, including the Bribery Act 2010 and the Modern Slavery Act 2015.

14.2 The Supplier shall provide on request evidence of its compliance policies.

14.3 A breach of this clause is a material breach for the purposes of clause 22.2.

15 HEALTH, SAFETY AND SITE RULES

15.1 The Supplier's personnel shall comply with the Customer's site rules when attending a Site.

15.2 The Supplier shall provide safety data sheets for hazardous goods before delivery.

15.3 The Supplier shall report to the Customer any accident occurring at a Site within twenty four hours.

16 INSURANCE

16.1 The Supplier shall maintain public liability insurance of not less than GBP 10,000,000 and product liability insurance of not less than GBP 5,000,000 for each occurrence.

16.2 The Supplier shall provide evidence of that insurance on request.

17 CONFIDENTIALITY

17.1 Each party shall keep confidential the other's confidential information and use it only for the purposes of this Agreement.

17.2 This clause does not apply to information which is public through no fault of the receiving party or which must be disclosed by law.

17.3 This clause continues for three years after this Agreement ends.

18 DATA PROTECTION

18.1 Each party shall comply with applicable data protection law in respect of personal data processed under this Agreement.

18.2 The parties do not expect either to act as a processor for the other. If that changes they shall enter into written processing terms.

19 INTELLECTUAL PROPERTY

19.1 Nothing in this Agreement transfers intellectual property rights.

19.2 The Supplier warrants that the supply of the goods does not infringe a third party's intellectual property rights.

20 LIMITATION OF LIABILITY

20.1 Nothing limits liability for death or personal injury caused by negligence, for fraud or for any liability which cannot lawfully be limited.

20.2 Neither party is liable for loss of profit, loss of contract or indirect or consequential loss.

20.3 Subject to clauses 20.1 and 20.2, each party's total liability in any period of twelve months is limited to the sums invoiced under this Agreement in that period.

21 FORCE MAJEURE

21.1 Neither party is liable for a failure to perform caused by an event beyond its reasonable control, provided it notifies the other promptly.

21.2 If the event continues for more than sixty days either party may terminate this Agreement on written notice.

22 TERMINATION

22.1 After the initial term either party may terminate this Agreement for convenience by giving the other not less than twelve months' written notice.

22.2 Either party may terminate immediately by written notice if the other commits a material breach which is not remedied within thirty days of notice requiring remedy.

22.3 Either party may terminate immediately if the other becomes insolvent.

22.4 Termination does not affect Orders already accepted, which are completed on the terms of this Agreement.

23 CONSEQUENCES OF TERMINATION

23.1 On termination each party shall return or destroy the other's confidential information.

23.2 Accrued rights and clauses 17, 20 and 28 survive termination.

24 ASSIGNMENT AND SUBCONTRACTING

24.1 Neither party may assign this Agreement without the other's written consent, not to be unreasonably withheld.

24.2 The Supplier may use its own group companies to fulfil Orders but remains responsible for performance.

25 NOTICES

25.1 Notices shall be in writing and sent to the addresses in Annex A.

25.2 A notice sent by recorded delivery is treated as received on the second Business Day after posting.

25.3 A notice of termination may not be given by electronic mail alone.

26 ENTIRE AGREEMENT AND VARIATION

26.1 This Agreement is the entire agreement between the parties in relation to the products described in Schedule 1 and supersedes all earlier discussions.

26.2 This Agreement does not affect the Supply Agreement (Meter Cabinets) dated 4 July 2022 between the parties, which continues in force for the products listed in its Annex.

26.3 No variation is effective unless in writing and signed by an authorised signatory of each party.

27 THIRD PARTY RIGHTS, WAIVER AND SEVERANCE

27.1 A person who is not a party has no right to enforce this Agreement.

27.2 A failure to enforce a term is not a waiver of it.

27.3 If a provision is held to be unenforceable the remainder continues in force.

28 GOVERNING LAW AND JURISDICTION

28.1 This Agreement and any dispute arising out of it are governed by the law of England and Wales.

28.2 The courts of England and Wales have exclusive jurisdiction.

SCHEDULE 1 - PRODUCT CATEGORIES (1 of 4)

S1.1 The categories below describe the goods normally ordered under this Agreement.

S1.2 Category A - Cable: single core, twin and earth, SWA armoured, fire performance cable, flexible cable, data cable.

S1.3 Category B - Cable management: steel and PVC trunking, tray, basket, conduit, fixings and accessories.

S1.4 Category C - Wiring accessories: sockets, switches, back boxes, fused connection units, cable outlets.

SCHEDULE 1 - PRODUCT CATEGORIES (2 of 4)

S1.5 Category D - Lighting: internal luminaires, emergency luminaires, external and amenity lighting, lamps and control gear.

S1.6 Category E - Low voltage distribution: consumer units, distribution boards, circuit protection, isolators, metering enclosures.

S1.7 Category F - Heating and ventilation controls: room controls, immersion heaters, extract fans.

SCHEDULE 1 - PRODUCT CATEGORIES (3 of 4)

S1.8 Category G - Test equipment and consumables: test instruments, calibration, tools, tapes, cleaning and site consumables.

S1.9 Category H - Fire and security: detectors, sounders, panels, door entry, access control components.

S1.10 Category J - Renewables and electric vehicle charging: charge points, mounting and associated protection.

SCHEDULE 1 - PRODUCT CATEGORIES (4 of 4)

S1.11 This Schedule is indicative. An Order for a product outside these categories is still placed under this Agreement if the Supplier accepts it.

S1.12 This Schedule has no separate expiry date and runs for the term of this Agreement.

S1.13 Meter cabinets and associated enclosures are excluded from this Schedule and are supplied under the Supply Agreement (Meter Cabinets) dated 4 July 2022 referred to in clause 26.2.

SCHEDULE 2 - PRICE MATRIX (1 of 2)

S2.1 Schedule 2 is not reproduced in this document. It is issued separately as a spreadsheet under clause 8.2 and forms part of this Agreement while it is in force.

S2.2 The Schedule 2 in force at the date of this Agreement was valid from 1 October 2023 to 31 December 2023 and has been replaced annually since.

S2.3 Each Schedule 2 states the period for which it is valid. It expires at the end of that period whether or not this Agreement continues.

S2.4 The Schedule 2 issued for the period 1 January 2026 to 31 December 2026 is the current Price Matrix.

SCHEDULE 2 - PRICE MATRIX (2 of 2)

S2.5 The format of Schedule 2 is: product group, product code, description, list price, contract discount and net contract price.

S2.6 Where a product code appears in Schedule 2 the net contract price in it prevails over any other price quoted, subject to clause 4.2.

S2.7 If Schedule 2 expires without replacement, clause 8.4 applies until a replacement is agreed. The expiry of Schedule 2 does not end this Agreement.

SCHEDULE 3 - DELIVERY SITES (1 of 3)

S3.1 Cawdale Central Stores, Larkhall Road, Cawdale. Working Hours 07:00 to 16:00 Monday to Friday.

S3.2 Trentmoor Repairs Depot, Fettle Way, Cawdale. Working Hours 07:00 to 15:30.

S3.3 Netherford Housing Office, Foundry Lane, Netherford. Working Hours 08:30 to 16:00.

SCHEDULE 3 - DELIVERY SITES (2 of 3)

S3.4 Larkhall Court, Larkhall Road, Cawdale (refurbishment site compound). Working Hours 07:30 to 16:00.

S3.5 Kellerby Interchange site compound, Kellerby. Working Hours 07:00 to 17:00.

S3.6 Sites may be added or removed by the Customer on ten Business Days' written notice.

SCHEDULE 3 - DELIVERY SITES (3 of 3)

S3.7 Deliveries to an address which is not a Site are charged under clause 7.3.

S3.8 This Schedule has no separate expiry date and runs for the term of this Agreement.

ANNEX A - NOTICES

A1 Notices to the Customer: The Contracts Manager, The Housing Partnership (Trentmoor) Limited, Trentmoor Civic Offices, Larkhall Road, Cawdale CW3 2RN.

A2 Notices to the Supplier: The Commercial Director, Halbrook Electrical Distribution Ltd, Halbrook House, Marmion Way, Ellersby EL4 7QN.

A3 Orders are sent to the Supplier's contract desk at the electronic mail address notified from time to time.

ANNEX B - ESCALATION CONTACTS

B1 First level: the Customer's category buyer and the Supplier's account manager.

B2 Second level: the Customer's Head of Procurement and the Supplier's Regional Sales Manager.

B3 Third level: the Customer's Director of Assets and the Supplier's Commercial Director.

B4 A dispute not resolved at third level within thirty days is referred to clause 28.

MASTER SUPPLY AGREEMENT - SIGNATURE PAGE

Contract reference THP/2023/ELEC-11. Page 41 of 42.

The Customer: The Housing Partnership (Trentmoor) Limited

The Supplier: Halbrook Electrical Distribution Ltd

This Agreement is executed on the dates below and commences on 1 October 2023 in accordance with clause 3.1.

SIGNED for and on behalf of The Housing Partnership (Trentmoor) Limited

A handwritten signature in blue ink, appearing to read 'M. Elverstone', written over a horizontal line.

M. Elverstone

Director

Date: 5 September 2023

SIGNED for and on behalf of Halbrook Electrical Distribution Ltd

A handwritten signature in blue ink, appearing to read 'P. Nettlefold', written over a horizontal line.

P. Nettlefold

Commercial Director

Date: 7 September 2023

This page is intentionally left blank.

Document control THP-LEGAL-2023-11 rev 6. End of document.